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File No.: EXP202306617
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RESOLUTION OF RIGHTS PROCEDURE

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: Mr. A.A.A. (hereinafter, the claimant) sent a written communication via burofax dated December 2, 2022, to VODAFONE ESPAÑA, S.A.U. (hereinafter, the respondent) indicating that "(...) According to the information provided by you via telephone, you have confirmed that you currently do not hold ownership of that line as it has been deactivated for years, and that since March 2022, the ownership is held by another person.

With the sole purpose of being able to defend himself against the problems that this telephone line is causing him, he requests a written confirmation of the following points, taking advantage of the fact that Mr. (...) continues to be a customer of Vodafone at present:

- Confirmation that Mr. (...) currently does not hold ownership of the line ***TELEFONO.1, and that it is associated with another person
- Date of deactivation of the line ***TELEFONO.1 associated with his name
- Deletion of his customer record for the line ***TELEFONO.1 and passport number ***PASAPORTE.1 associated with his name (as his NIE ***NIF.1 is already known to you), as well as from any files that may contain that number and personal identification number."

SECOND: On March 29, 2023, a complaint was received by this Agency against the respondent for not having duly attended to his right.

The claimant states that he has been a Vodafone customer since 2007. He indicates that in July 2012, after being outside of Spain since February 2010, he contacted the respondent to recover the telephone line, informing him that it had been deactivated due to disuse, so he proceeded to contract a new telephone line.

He notes that in July 2022, the National Police of ***LOCALIDAD.1 contacted him, as they were investigating the theft of a mobile phone, which, after being stolen, had a card inserted with line ***TELEFONO.1, indicating that Vodafone states it is in the name of the claimant.

The claimant indicates that he was informed that this line had been deactivated due to disuse; however, from that moment on, he received calls from different police stations regarding the same events.

THIRD: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the aforementioned complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations, without any response being recorded.

FOURTH: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the claims of the claimant were satisfied. Consequently, on June 29, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing period, so that within ten business days, they could present any arguments they deemed appropriate, stating, in summary, that "(...) The request for the exercise of rights was sent to the Customer Service channel on December 9, 2022, and the information regarding the attention to your right is recorded in the systems. (...) In fact, the claimant himself, in his writing to Vodafone, acknowledges that Customer Service confirmed to him by telephone that the deactivation was carried out several years ago and that the ownership is in the name of another customer since March 2022. Therefore, the claimant was responded to with the requested information and the ownership of the line has been in the name of

another interested party since March 2022, that is, from a date well before the receipt of the exercise of his right.

The response is not recorded in writing because the claimant's request was directed to the Customer Service complaints channel, which is not the channel enabled for the written processing of requests for data protection rights. (...)

Thus, since the request was not correctly sent to the channel enabled for this purpose, it was processed, but without meeting the requirements established by this entity for processing written responses to data protection requests, as it was, after verifying the legality of the request, responded to by telephone. For this reason, it should not be considered that Vodafone did not attend to the request for the right exercised by the claimant.

Furthermore, my client is aware that a second complaint was subsequently notified to Vodafone on May 5, 2023, via email, where the lawyers acting on behalf of the claimant requested that the situation be rectified before the police, and this was attended to by the Legal Advisory Department.

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This document explains that Vodafone, upon police request, mistakenly provided the claimant's data, but that this information was subsequently corrected, and thus it was already updated. Document number 2 is attached, which contains the response provided by the Legal Advisory Department to the claimant's representation dated June 23, 2023.

Regarding the definitive deletion of Mr. A.A.A.'s data in relation to my client, it is informed that this is not possible as there are still active services registered under Mr. A.A.A.'s name associated with another number. In the event of wanting complete deletion of the data, a definitive cancellation of all services or the portability of the same must be requested beforehand.

A letter is sent through this act to Mr. A.A.A. confirming that, indeed, since March 31, 2022, line number ***TELEFONO.1 is registered under another holder's name, as well as informing about the other points addressed in this document (Document number 3).

FIFTH: After examining the document submitted by the responding party, it is transferred to the claimant, so that, within ten business days, they may formulate the allegations they deem appropriate, indicating, in summary, and as far as this procedure is concerned, that they sent their right to deletion to the responding party via burofax because "(...) even on four occasions through telephone requests, they were unable to effectively achieve what was previously confirmed to them by the various Vodafone employees they spoke with, who assured them that the line was not associated with my represented party as it had been canceled for years, and that their NIE was correctly listed in the company's files. However, Vodafone continued to erroneously inform the police, linking line ***TELEFONO.1 to their person, and their old passport number ***PASAPORTE.1, even after the date of sending the burofax, as the last legal proceeding initiated against them for this reason is from 2023 (Preliminary Proceedings XXX/XXXX – Court of Instruction 4 of ***LOCALIDAD.2). Therefore, it is not true that Vodafone corrected its error from a date well before the exercise of their right was received; or that it was processed, and, after verifying the legality of the request, responded by phone."

"(...) The lawyer acting on behalf of Vodafone states that the information erroneously provided to the police was corrected, but does not say or prove when. In the third allegation of their document, they indicate that on December 27, 2022, Customer Service attended to the request received..., but does not prove anything. The only verifiable date is the response provided by the Legal Advisory of the telephone company dated June 23, 2023 (Annex 3 or Doc. 2 of Vodafone's allegations). The letter addressed to Mr. A.A.A. dated July 25, 2023, confirming that, indeed, since March 31, 2022, the line is registered under another holder's name (Annex 4 or Doc. 3 of Vodafone's allegations) has not been received by my represented party. In any case, both documents arrive very late, because if in June 2023 there are already five legal proceedings against my represented party as a result of Vodafone's error, several others may have been initiated prior to that date. Because from the information provided by the police to this lawyer, there are eighteen complaints against my represented party and harmed

by multiple thefts.
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Robberies committed since May 2022 onwards with the line ***TELEFONO.1, although to date only five have been initiated. (...) Mr. A.A.A. had to wait until June 23, 2023, to receive a reliable response from Vodafone with which to defend himself against the judicial proceedings initiated, since despite being assured by telephone that he was not linked to the telephone line in question, the employees of the telecommunications company continued to inform the police negligently and recklessly to the contrary. Hence the accusation against Mr. A.A.A. for the crimes committed through that line since May 2022.

(...) My client had to request again via email on May 5, 2023, through his lawyer, having delayed Vodafone's response until June 23, 2023. (...) The response has finally arrived - it is true - but very late and poorly, which has caused Mr. A.A.A. to suffer serious damages and losses, (...)

Regarding the letter dated July 25, 2023, attached as Annex 4 to Vodafone's allegations, Mr. A.A.A. has not received that letter from Vodafone, nor does the company prove its reliable receipt by my client, other than with the receipt of the allegations document from the company's lawyer that is now being responded to.

THIRD.- Neither Mr. A.A.A. in his telephone requests, nor his lawyers acting on his behalf, have requested the complete deletion of his data from Vodafone but only a proof of the cancellation of the line ***TELEFONO.1 and its removal from his customer file, as well as his passport number ***PASAPORTE.1 since his NIE is recorded, to avoid further damages in the future, as he is still a customer of Vodafone today.

Therefore, the request made via burofax to Vodafone on behalf of Mr. A.A.A. is reiterated, which still has not been fulfilled:

- Provide written justification for the cancellation date of the line ***TELEFONO.1 associated with Mr. A.A.A.
- Remove the line ***TELEFONO.1 and the passport number ***PASAPORTE.1 from his customer file, as well as from any files that may contain that number and personal identification number, as they do not correspond to him and have been the cause of the enormous harm he is suffering."

"(...) Yesterday my client received at his home the letter dated July 31, 2023, which is attached as DOCUMENT NUMBER 1. The problem is that this letter arrives very late - no less than 15 months late -, (...)

This letter contains several errors that reveal the negligence and recklessness in Vodafone's actions: (...) 2nd As has already been pointed out in this document, Mr. A.A.A. is not requesting the complete deletion of his personal data, among other things because he is still a customer.

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Vodafone customer. What he has been claiming for all these months is something as simple as a proof of cancellation of the line ***TELEFONO.1 stating the exact date on which it was canceled. As well as the deletion of his customer record for the line ***TELEFONO.1 and his passport number ***PASAPORTE.1, since he already has his NIE. (...)

3rd Vodafone is not truthful when it states that in subsequent requests (from the police) the information provided has been corrected. The police began searching for Mr. A.A.A. in June 2022 and the last judicial summons received was on July 13, 2023. (...)

SIXTH: After granting a hearing to the responding party, it states, in summary, regarding the present procedure, that

"(...) d. Vodafone has corrected this error on numerous occasions:

- i. Responding with the information of the actual holder of the line in the ten additional information requests it has received.
 - ii. The letter sent to the Courts indicating that the line ***TELEFONO.1 was not registered in the name of the claimant.
 - iii. The letter sent to the claimant on June 23, 2023.
 - iv. The letter sent to the claimant on July 31, 2023.
 - v. A letter addressed to the Civil Guard rectifying the information provided in the three requests linking the line ***TELEFONO.1 with Mr. A.A.A.
3. Mr. A.A.A. requested, through various channels, confirmation that the line was not in his name. These requests were managed by Vodafone's Customer Service team, informing him that the line ***TELEFONO.1 was not in his name.

This disparity between the information provided to the claimant and that sent to the state security forces and courts in the three previously mentioned requests is due to the fact that the Customer Service team has access to Vodafone's customer management systems to process such requests, and in these systems, it did not appear that the line ***TELEFONO.1 was linked to the claimant, but rather that it was correctly canceled, which is why the responses alleged in his writings were offered to him.

THIRD.- Vodafone, at the moment it became aware of the error, corrected the information provided and collaborated with the claimant.

The incorrectly sent information to the state security forces has been rectified, not only by providing a response to the claimant's lawyer on June 23, 2023, submitted as Document number 2 of the allegations presented to the Agency and registered under number ***REGISTRO.1, (hereinafter, "Allegations of July 25"), but also to the Court of Instruction No. 4 of ***LOCALIDAD.2 on August 30, 2023. Evidence of this rectification is attached as Document number 1. (...)

(...) Likewise, a letter was also sent to the claimant, which was attached as Document number 3 of the Allegations of July 25. Regarding this letter, C/ Jorge Juan, 6

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there is an inconsistency in the Written of August 9, stating that the claimant has not received the letter that was attached as Document number 3 of the Allegations of July 25. (...)

However, in the same writing from the claimant, the letter is attached as Annex 2, with the only difference being that the letter is dated July 31, 2023. (...)

This difference in dates, not in content, was due to a delay in sending by the responsible team at Vodafone. Therefore, the letter was indeed correctly received by the claimant."

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their

obligations, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to the present procedure, it was forwarded to the responding party for analysis, to respond to this Agency within one month, and to prove that it had provided the claimant with the appropriate response.

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The result of this transfer did not allow for the satisfaction of the claims of the complaining party.

Consequently, on June 29, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission for processing determines the initiation of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint accepted.”

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including “ordering the data controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation.”

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, the provisions expressed in Recitals 59 and following of the GDPR are taken into account. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to address such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

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The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right to erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the data controller the erasure of personal data concerning them without undue delay, and the data controller shall be obliged to erase personal data without undue delay when one of the following circumstances applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based according to Article 6(1)(a) or Article 9(2)(a), and where there is no other legal ground for the processing;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation in Union or Member State law to which the data controller is subject;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the data controller has made the personal data public and is obliged, under paragraph 1, to erase such data, the data controller, taking into account the available technology and the cost of implementation, shall take reasonable steps, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any links to, or copies or replications of, those personal data.

3. Paragraphs 1 and 2 shall not apply to the extent that processing is necessary:

- a) for exercising the right of freedom of expression and information;
- b) for compliance with a legal obligation which requires processing by Union or Member State law to which the data controller is subject, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9(2)(h) and (i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes in accordance with Article 89(1), in so far as

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the right indicated in section 1 could make it impossible or severely hinder the achievement of the objectives of such processing, or

- e) for the formulation, exercise, or defense of claims."

V

Conclusion

The Rights procedure is initiated as a consequence of the denial of any of the rights regulated in data protection legislation. Therefore, only the facts related to the requested deletion will be analyzed and evaluated, excluding the rest of the issues raised.

Article 12 of the LOPDGD, General provisions on the exercise of rights, establishes that:

"1. The rights recognized in Articles 15 to 22 of Regulation (EU) 2016/679 may be exercised directly or through a legal or voluntary representative.

2. The data controller shall be obliged to inform the affected party about the means available to exercise the rights that correspond to them. The means must be easily accessible to the affected

party. The exercise of the right may not be denied solely on the grounds that the affected party opted for another means.

3. (...)

4. The burden of proof for compliance with the duty to respond to the request for the exercise of their rights made by the affected party shall rest with the controller.

(...)"

In the event that the exercise of the right is not presented through the provided channel or at the corresponding office, the receiving body must forward the request received to the assigned Data Protection Officer or to the department responsible for managing such requests.

Furthermore, although it is appropriate for such a request to be addressed to the address declared by the controller for the purposes of exercising the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 or to the central office, it is considered that the receipt of the request by any department or branch of the controller is a valid destination for it, in accordance with Article 12 of the LOPDGDD, which states:

"The data controller shall be obliged to inform the affected party about the means available to exercise the rights that correspond to them. The means must be easily accessible to the affected party. The exercise of the right may not be denied solely on the grounds that the affected party opted for another means."

In this case, and taking into account the provisions of the first paragraph of this Legal Basis, from the documentation provided during the processing of this procedure, it has been established that the complaining party sent a letter to the complained party requesting the deletion of some of their data and the confirmation that other data has been deleted, and that the complained party responded "(...)

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that the deletion of their data is not possible since they still have an active fiber, mobile, and TV service with another number. If they wish for the complete deletion of their data, we kindly ask them to contact the Customer Service Department to request the cancellation of all services or to request portability." Analyzing the aforementioned response, it cannot be accepted as a denial of the requested deletion right, as the exercise of the right clearly established the data for which such deletion was requested, not for all of them.

Consequently, it is appropriate to uphold the complaint presented, so that the complained party expressly responds regarding the specific data for which the deletion right was exercised.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the complaint filed by Mr. A.A.A. considering that the provisions of Article 17 of the GDPR have been infringed and to urge VODAFONE ESPAÑA, S.A.U. with NIF A80907397, to send to the complaining party, within ten working days following the notification of this resolution, a certification addressing the requested right or a reasoned denial indicating the reasons why the request cannot be granted, in accordance with the provisions established in the body of this resolution. The actions taken as a consequence of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could constitute an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to Mr. A.A.A. and to VODAFONE ESPAÑA, S.A.U.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for

Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.
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